

Equivalent Citations

citation codes .

ASHA SURESH v. ISRO

Central Administrative Tribunal (Jun 28, 2024)

CASE NO.

O.A./758/2021

DISPOSITION

DISMISSED

OA/758/2021 Page 1 of 9

CENTRAL ADMINISTRATIVE TRIBUNAL

HYDERABAD BENCH

OA No. 758/2021

HYDERABAD, this the 28th day of June, 2024

**Hon'ble Dr. Lata Baswaraj Patne, Judicial Member Hon'ble Ms. Shalini Misra,
Administrative Member**

Mrs Asha Suresh, W/o A.Suresh, aged 59 years, Occ: Personal Secretary (Group 'B')
O/ o Deputy Director, Remote Sensing Applications, National Remote Sensing
Centre,

Balanagar, Hyderabad.

... Applicant.

(By Advocate : Mr. KRKV Prasad)

Vs.

1. Union of India represented by The Secretary & Chairman, Indian Space Research
Organisation (ISRO), Department of Space, Government of India, Antariksha
Bhavan, New BEL Road, Bangalore-560 094.

2. National Remote Sensing Centre (NRSC), Represented by its Director,
Balanagar, Hyderabad.

3. The Secretary, Department of Expenditure, Ministry of Finance, New
Delhi-110001.

... Respondents.

(By Advocate: Mr. V Vinod Kumar, Sr.PC for CG) -----

ORAL ORDER**(As per Hon'ble Dr.Lata Baswaraj Patne, Judicial Member)**

By this Original Application, the applicant is seeking the following relief(s):

"That this Hon'ble Tribunal may be pleased to call for the Service Record of the applicant and declare the action of the respondents in retaining the applicant in CPF Scheme as illegal, arbitrary, unjust and direct the respondents to treat the applicant as deemed to have come over to GPF with Pension and D.C.R.G in the light of the DP & PM OM dated 01.05.1987 and accordingly extend the all the consequential benefits of pension and other pensionary benefits to the applicant w.e.f. the date of retirement of the applicant and pass such other order or orders in the interest of justice.."

2. I) The brief facts of the case are that the applicant was initially appointed as Stenographer on 14.02.1986 in the National Remote Sensing Agency(NRSA) which was an autonomous body functioning under a Governing Council. In the year 2008, the NRSA had attained the status of a Centre i.e. one of the Centres of the Indian Space Research Organisation(ISRO) under the Ministry of Science & Technology. The applicant is currently working as Personal Secretary in the 2nd Respondent Centre. It is submitted that the applicant opted for Contributory Provident Fund Scheme(CPF) on 12.11.1986. However, based on the IV CPC recommendations, the Department of Pension & Pensioner's Welfare(DP&PW) issued OM dt. 01.05.1987, providing an option to switch over from CPF to GPF(General Provident Fund) w.e.f. 30.09.1987. Consequently, the Department of Space issued OM dt. 21.10.1987 and NRSA, in turn, issued Circular on 29/30.12.1987, extending the cut-off date up to 31.01.1988 for exercising the option to continue in CPF. It is submitted that the applicant did not exercise her option to continue in CPF and, as per the DP&PW's OM dt. 01.05.1987, the employees who have not exercised option to continue in CPF are deemed to have come over to the GPF with Pension and DCRG. The Department of Space OM dt. 21.10.1987/Circular dt. 30.12.1987, which extended the cut-off date prescribed by the DP&PW, are invalid in the

eyes of law, as the same were issued without the sanction of the President. Therefore, the employees working in the Department of Space, who were in CPF and opted to remain in CPF after the Cut-off date i.e. 30.09.1987, will be deemed to have become members of GPF. Thus, the applicant shall be treated as converted to GPF-cum-Pension Scheme. In this regard, the applicant made representations from 23.11.2006 to extend the GPF benefit. The 2nd Respondent Office sent recommendations in favour of the applicant to the 1st Respondent seeking approval to extend the benefit of GPF, but no action has been taken till date. Aggrieved over the inaction of the respondents in granting the GPF benefit, the applicant has filed the present OA.

II) The applicant's counsel has relied upon the judgment of the Hon'ble Supreme Court in the case of *Union of India Vs. S.L. Verma [(2006) 12 SCC 53]*. He further relied upon the judgment of the Hon'ble High Court of Delhi in the cases of *Dr. R.N. Virmani & Ors. Vs. University of Delhi & Anr . in W.P(C) No.1490/2006-1507/2006 dt. 30.04.2014;* *Smt. Shashi Kiran & Ors. Vs. Union of India & Ors. [2016 SCC Online Del 4819];* *Rajiv Raizada Vs. Union of India & Ors. in W.P.(C) No.6747/2014 dt. 05.07.2021*. The judgment of the Hon'ble High Court of Madras in the case of *Dr. Kishore K. John Vs. Union of India in W.P Nos. 10993, 11015 & 11027 of 2020 dt. 23.04.2021*. The applicant's counsel contended that, as per the cut-off prescribed in the DP&PW OM dt. 01.05.1987, the applicant is deemed to have come under the purview of GPF and no other cut-off date can be considered as valid in the eyes of law. He prayed to allow the OA.

3. I) After notices were issued, the respondents have appeared through their counsel and filed reply, opposing the relief. It is submitted that the applicant joined the NRSA as Stenographer on 14.02.1986. Initially, on par with other regular employees, the applicant was allowed to be a member of EPF.

Subsequently, against the Circulars dt. 04.09.1986 & 30.10.1986, the applicant specifically opted for Package II(a) i.e. CPF, vide her declaration dt. 12.11.1986. Thereafter, CPF and GPF rules were made applicable to NRSA employees w.e.f. 01.06.1987. Accordingly, vide Circular dt. 22.06.1987, the employees who had opted for Package I were brought under CPF w.e.f. 01.06.1987. Thus, there were only two schemes available in NRSA w.e.f. 01.06.1987 i.e. CPF & GPF. It is submitted that, vide Circulars dt. 29.12.1987 & 30.12.1987, employees who have been considered as deemed to have opted for Package II as per Para 7 of Notice dt. 04.09.1986 will be deemed to have come over to GPF with pension and gratuity, unless specifically opted for CPF. The applicant is not treated as deemed to have opted for Package II, as she has specifically opted for Package II(a) vide declaration dt. 12.11.1986. Therefore, the applicant was not considered under the category of 'deemed to have come over to GPF' and continued under CPF only. The respondents further contended that, vide Circular dt. 14.05.1990, an option was given to switch over to pension scheme to Non-Technical personnel, who are governed by CPF Scheme under Package I & II. The applicant did not opt to switch over to GPF/ Pension Scheme and, accordingly, she continued in CPF Scheme. It is submitted that the applicant continued in CPF Scheme without any grievance till 22.11.2006 and submitted representation dt. 23.11.2006, after a period of 20 years and requested to provide one more opportunity for conversion to pension scheme. Meanwhile, the NRSA became a Government entity w.e.f. 01.09.2008 being governed by the rules and regulations of Govt. of India on CPF & GPF etc. The Govt. of India has not given any option to its employees to switch over from CPF to GPF. However, based on the representations of some of the employees of NRSA/NRSC, including the applicant, the matter was taken up with the Department of Space, which, in turn, took up the matter with the Department of Pension & Pensioners' Welfare(DP&PW). The DP&PW, vide Letter dt. 18.10.2012 clarified that the

provisions of DP&PW OM dt. 01.05.1987 are not applicable to the employees of autonomous bodies and the employees of NRSA cannot be given any more options to switch over to pension scheme. The same was communicated to the concerned employees and they have not challenged it. Therefore, the applicant is not entitled to any relief in respect of switching over from CPF to GPF/Pension Scheme.

II) The respondents further contended that, during the period from 1980 to 2006, the applicant applied for advance from CPF and also given nominations in respect of CPF. Thus, she was well aware that she was in CPF. For the first time, vide her Letter dt. 23.11.2006, she requested the respondents to provide one more opportunity for conversion to pension scheme.

III) The respondents, while replying to the OA, have taken a stand that the judgment of the Hon'ble High Court of Delhi in the case of **Dr. R. Virmadi & Ors. Vs. University of Delhi** is not applicable in the present case, as DP&PW OM dt. 01.05.1987 is not applicable. The applicant had specifically opted for CPF vide her declaration dt. 12.11.1986. Further, in spite of an opportunity given vide Circular dt. 14.05.1990 to switch over to pension scheme, the applicant had not exercised the said option. Therefore, the applicant is not entitled for any relief. The respondents' counsel prayed for dismissal of the OA.

4. The applicant has also filed rejoinder and reiterated his stand on the ground that, it is not mandatory that the Department has to follow the law settled by the Courts of the land. The learned counsel for the applicant strongly argued on the point that, even though the immediate Head of the Institute has recommended the applicant's case right from 2006 onwards, till his date of retirement, the request of the applicant was not considered. The learned counsel for the applicant further argued on the point that, it is a trite law that once law is

settled by the Constitutional Courts, the same is binding even on autonomous bodies. It is submitted that, distinguishing the applicant's case as not covered by the Judgment of the Hon'ble Supreme Court in the case of Union of India Vs. Shri S.L. Varma, is not correct. The applicant's case is a case of deemed option coming under the purview of GPF/Pension Scheme. Hence, the DP&PW Letter dt. 18.10.2012 is not applicable. It is further submitted that, it is not required to exercise option in terms of NRSA Circular dt. 14.05.1990 which is a second option barred under the rules. Further, the respondents, vide Department of Space Letter dt. 07.06.2016, allowed the cases of Shri Srinivasa Rao and Smt. Aruna of teachers category, who joined the Shar Centre, Sriharikota after 01.01.1986 and initially opted for CPF. The learned counsel for the applicant further submitted that the issue involved in the matter is squarely covered by the judgment of the Hon'ble Supreme Court in the case of [University of Delhi Vs. Shashi Kiran & Ors](#) . along with connected matters[[2022 SCC Online 594](#)]. He further relied upon the judgment of the Hon'ble High Court of Madhya Pradesh at Gwalior in the case of **Ram Dayal Vs. Union of India & Ors.** in Misc. Petition No.2864 of 2023 dt. 09.05.2024 wherein, relying upon the Hon'ble Supreme Court judgment in the case of University of Delhi Vs. Shashi Kiran(supra), it was held that, when the Notification dt. 01.05.1987 was issued, the authorities were conscious of the possibility that all the employees may "come over" to GPF. With that possibility in mind, the fund was constituted and the affairs were arranged. Thereby, the Tribunal's Order was set aside and the Writ Petition was allowed, by granting the relief to switch over from CPF to GPF.

5. The respondents have filed written arguments and reply to the rejoinder along with additional documents. It is contended that, from the 1st option dt. 12.11.1986 to her first representation dt. 23.11.2006, for almost 20 years, the applicant kept quiet. In her representation dt. 23.11.2006, the applicant herself

mentioned that, 'at the point of opting for CPF, the then prevailing rate of interest was 12% vis-a-vis the present interest rate of 8% with DA reaching 50 points, the same is merged with the salary as DP which is also considered for pensionary benefits for GPF holders'. Therefore, it is clearly evident that, when the applicant understood that, there is no benefit to be covered under CPF Scheme in future, she started representing to provide one more option to cover under GPF/ Pension Scheme. Nowhere in her repeated representations, she claimed that she will automatically come under the GPF, as per the DoPT OM dt. 01.05.1987 and, in fact, every time the applicant requested to grant another option to cover under GPF/ Pension Scheme. The learned counsel for the respondents further contended that, in respect of the reference given by the applicant to the cases of Shri Srinivasa Rao and Smt. Aruna, who are teachers of SHAR Centre, the applicant has not produced the details of the cases for any comments. However, it is submitted that, SHAR is Central Govt. Department, whereas NRSC is an Autonomous Body and converted to Govt. entity under the Department of Space. Hence, the said reference is not relevant. In response to the representations of the applicant, the respondents have taken up the matter with the DP&PW, the Nodal authority. By way of OM dt. 18.10.2012, in respect of 12 employees, including the applicant, the DP&PW clarified that the provision of the OM dt. 01.05.1987 issued by them is not applicable to an Autonomous Body and the same has been communicated to the concerned Department vide their Letter dt. 08.03.2013, which is well within the knowledge of the applicant and the applicant has not challenged the said communication. The learned counsel for the respondents further contended that, exercise of option was offered by NRSA before the Governmentalisation whereas no more option was given to the NRSC employees after receipt of the clarification from DP&PW. Therefore, the applicant is not entitled for any relief as prayed for. The learned counsel for the respondents submitted that the judgment of the Hon'ble Supreme Court relied

upon by the applicant in the case of [University of Delhi Vs. Shashi Kiran & Ors.](#) along with connected matters & the judgment of the Hon'ble High Court of Madhya Pradesh in the case of **Ram Dayal Vs. Union of India & Ors.** are not applicable to the present case.

6. After considering the submissions of the parties and having gone through the record carefully, it is seen that the applicant, who had joined the services on 14.02.1986, specifically opted for Contributory Provident Fund Scheme(CPF) on 12.11.1986. Nowhere the applicant has mentioned in respect of another option provided vide Circular dt. 14.05.1990. It is also not disputed that the applicant joined the service as Stenographer and reached to the post of Personal Secretary(Group- B). The applicant enjoyed the benefit of the CPF by claiming advance as well and, she raised grievances to the Department only in the year 2006, which is categorically pointed out by the respondents, stating that the applicant, after the VI CPC recommendations, noticed that the GPF is more beneficial and, therefore, represented to the Department. However, nowhere in her pleadings or in any of the representations or in the OA, she submitted that the Department has given any another option on the DP&PW OM dt. 01.05.1987 and that she is governed by the same and she has to be considered automatically under the deemed pension scheme. It is to be noted that, when the communication has been made by the Department in respect of their representation way back in the year 2012, suppressing the said material facts from the record, further continuation of representation or either recommendation by the office where she was working is immaterial. Once a communication has been made, that has to be challenged before the appropriate court. It is also to be noted that in the orders passed by the Hon'ble Supreme Court in the matter of [University of Delhi Vs. Shashi Kiran & Ors.](#), it is particularly focusing on the point on the DOPT policy. It is observed in the judgment that, when the

employee who was not in service as on 01.01.1986 and joined thereafter, the question of application of order of Department of Pension dt. 01.05.1987 shall not arise and, as such, if any order of any Court of Law allows pension in their cases, the University of Delhi may have to appropriately file appeal in the appropriate appellate Court in consultation with UGC and MHRD. It is to be noted that the learned counsel for the applicant, while arguing the matter, pointed out that the observations of the Courts have to be taken in general. The learned counsel for the applicant, while relying upon the order passed by the Hon'ble High Court of Madhya Pradesh in the case of **Ram Dayal Vs. Union of India & Ors.**, submitted that, when various Courts are scrutinizing and extending such benefit, thereby the applicants case is squarely covered under these orders. It is to be noted that each case has to be considered on its own facts and merits therein. It is also to be noted that, whenever the Courts are passing orders, they will come to the conclusion, considering the facts placed before the Court as well as the policies. A general application cannot be taken in this matter, as the applicant was aware of this policy and enjoyed the benefit of the CPF and it is clear from her first representation itself that, when she realized that GPF Scheme is more beneficial, she started raising the grievances i.e. after 20 years. It is also to be noted that, vide Communication dt. 08.03.2013, when the request was rejected, neither the applicant nor the other persons have made any grievances.

7. In view of the above, we do not find any merit in the OA and the same is dismissed accordingly. No order as to costs.

(SHALINI MISRA) (DR. LATA BASWARAJ PATNE)

ADMINISTRATIVE MEMBER JUDICIAL MEMBER

/Ram/